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Case Number: 22NWCV01123 Hearing Date: June 30, 2026 Dept: SEL

REVISED TENTATIVE

ORDER

Defendants Access Services,
California Transit, Inc., and Mynor Ruben Hernandez's Motion for Summary
Adjudication is DENIED as to the first and third causes of action and is
GRANTED as to the fourth and fifth causes of action.

Defendants to give notice.

Background

This is a motor vehicle
negligence action. On October 27, 2022, Plaintiff Raul Heredia ("Plaintiff")
filed this action against Defendants Access Services, California Transit, Inc.,
Los Angeles County, Mynor Ruben Hernandez, Melissa Elaine Doolittle, and Does 1
to 20.

On April 24, 2023,
Defendants/Cross-Complainants Access Services and California Transit filed the
Cross-Complaint against Cross-Defendant Melissa Elaine Doolittle and Roes 1 to
100, alleging causes of action for 1) Total Equitable Indemnity, 2) Partial
Equitable Indemnity, 3) Declaratory Relief, and 4) Property Damage.

On June 26, 2023, Defendant Los
Angeles County was dismissed without prejudice.

On July 31, 2024, Defendants FCA

USA LLC and FCA US LLC were named as Doe 1 and 2, respectively.

On October 18, 2024, Defendant

FCA USA LLC was dismissed without prejudice.

On December 27, 2024, Plaintiff

filed the First Amended Complaint (FAC) against Defendants Access Services, California Transit, Inc., Mynor Ruben Hernandez, Melissa Elaine Doolittle, FCA US LLC, and Does 3 to 20. The FAC alleges that Plaintiff is a legally blind and disabled person. On December 15, 2021, Plaintiff requested transportation services from Defendant Access Services, which coordinated his request to Defendant California Transit, Inc., a paratransit operator. Defendant California Transit picked up Plaintiff in a van driven by Defendant Hernandez. The Complaint alleges that Defendant FCA US LLC and Defendant Access Service manufactured and/or modified the van in such a manner that affected the seating and safety systems of the van. The Complaint alleges that Defendant Hernandez failed to properly secure Plaintiff and/or failed to warn. The van came to a complete stop for the traffic conditions in front of it. At the same time, Defendant Doolittle was driving a Honda CRV at an excessive speed and was unable to stop in time, colliding into Defendant Hernandez's van. As a result, Plaintiff was impacted by the collision and suffered injuries.

The Complaint alleges the following causes of action:

1. Negligence

(against all Defendants);

2. Negligence

Per Se (against Defendant Doolittle);

3. Negligent

Entrustment (against Defendants Access Services and California Transit, Inc.);

4. Strict

Product Liability: Design Defect (against Defendants Access Services and FCA US LLC); and

5. Strict

Product Liability: Manufacturing Defect (against Defendants Access Services and

FCA US LLC).

Defendants Access Services,
California Transit, Inc., and Mynor Ruben Hernandez (hereinafter, "Defendants")
now move for summary judgment, or in the alternative, summary adjudication, as
to the first, third, fourth, and fifth causes of action.

Requests for Judicial Notice

Defendants' Request for Judicial
Notice of the FAC is granted.

Evidentiary Objections

Plaintiff's Evidentiary
Objections are overruled as to Nos. 1-4. The Court notes that Nos. 1-2 are improper
objections to asserted facts made in the separate statement, not specific
evidence.

Defendants' Evidentiary Objections
are overruled as to Nos. 1, 2, and 7, and sustained as to Nos. 3-6.

Defendants' Evidentiary Objection
No. 7 argues that the Declaration of Declaration of Christopher T. Aumais in
support of the Opposition refers to "Exhibit H" offered in support of
Defendants' Motion, but no such exhibit exists. The Court notes that the
Supplemental Declaration of Christopher T. Aumais in support of the Opposition
explains that such reference to Exhibit H was a mistake, and Plaintiff
submitted the evidence as Exhibit 5. (Aumais Supp. Decl., ¶¶ 2-9.) Defendant
Access Services provided and verified such exhibit in discovery. (Ibid.)
The Court considers such evidence.

Legal Standard

The function of a motion for
summary judgment or adjudication is to allow a determination as to whether an
opposing party cannot show evidentiary support for a pleading or claim and to
enable an order of summary dismissal without the need for trial. (Aguilar v.
Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure
section 437c, subdivision (c) "requires the trial judge to grant summary

judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a defendant has met its "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a moving party has satisfied the initial burden of proof, the burden "shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist." (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Discussion

First Cause of Action – Negligence

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Defendants argue that Plaintiff cannot prove the element of breach of duty. Firstly, it is undisputed

that Defendants' van was not operated in a reckless or unsafe manner. The FAC admits that Defendant Doolittle, not Defendant Hernandez, negligently operated her vehicle, causing the collision. (See FAC, ¶ 9.) Next, there is no evidence that Defendant Hernandez improperly secured Plaintiff in the back seat. Defendants offer evidence that Hernandez assisted Plaintiff into the Access vehicle, guided him into a seat, and helped Plaintiff put on his seat belt. (Hernandez Decl., ¶ 3; McEwan Decl., ¶ 3, Exh. A, Heredia Depo., 41:25-42:9.) Plaintiff was restrained in the back seat at the time of the accident. (Hernandez Decl., ¶ 3, Chrisman Decl., ¶¶ 2-6, Exh. A; McEwan Decl., ¶ 3, Exh. A, Heredia Depo., 42:15-22; 43:2-4; 48:13-15; 49:8-14.) A few seconds after the incident, Plaintiff removed his seat belt restraint himself, as seen in the video footage. (Chrisman Decl., ¶¶ 2-6, Exh. A; McEwan Decl., ¶ 5, Exh. C.) Further, Plaintiff had never had any issues with the seat belt restraint prior to the accident, where he had ridden with Access Services hundreds of times. (McEwan Decl., ¶ 3, Exh. A, Heredia Depo., 29:18-21, 33:5-10.) Plaintiff did not believe that there was anything wrong with the seat belt in the van. (McEwan Decl., ¶ 3, Exh. A, Heredia Depo., 44:8-10.)

In opposition, Plaintiff argues that a higher standard of care applies for common carriers pursuant to Civil Code section 2100 ["A carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise to that end a reasonable degree of skill."]. Plaintiff asserts that such duty includes an obligation to protect passengers from reasonably foreseeable harm, such as by securing a disabled passenger. Although Defendants raised a defense to common carrier liability in their Answer, Defendants do not address this heightened duty of care on the Motion.

Plaintiff does not allege that Defendant Hernandez negligently drove the van, causing the collision. Rather, Plaintiff alleges that Hernandez improperly secured Plaintiff and/or failed to provide a safe environment. Even if the ordinary care standard applied, triable issues of fact exist as to duty and causation. Plaintiff offers the following evidence in support:

- Plaintiff

does not recall whether Defendant Hernandez or Plaintiff fastened his seatbelt, but testified that both the lap and shoulder belts were on at the time of the impact. (Aumais Decl., ¶ 3, Exh. 1, Heredia Depo., 42.)

- When

asked whether the seat belt restrained him during the impact, Plaintiff testified “No,” and that the belt did not restrain him “the way it should have.” (Aumais Decl., ¶ 3, Exh. 1, Heredia Depo., 48-49.)

- In

response to Defendants’ Form Interrogatory No. 17. 1 (offered in support of the Motion), regarding Request for Admission No. 23, Plaintiff states that the dashcam video footage “shows that Plaintiff was not in fact restrained properly at the time of the incident” and that the restraint systems “show that Plaintiff was thrown from his seat, and ended up in a reclined position.” (McEwan Decl., ¶ 5, Exh. C.)

- The

video footage of the incident further shows that Plaintiff was wearing only the shoulder portion of his restraint and had no lap belt fastened across his pelvis. (McEwan Decl., ¶ 3, Exh. A; Aumais Supp. Decl., ¶ 4, Exh. 5.)

Even if Plaintiff’s own

seatbelt was fastened, Plaintiff argues that a second triable issue of fact exists. Specifically, Plaintiff theorizes that an unsecured seatbelt from another seat caused Plaintiff’s laceration above this eye right. Plaintiff offers the following evidence in support:

- Plaintiff

testified that, though belted, he was struck in the head and sustained a laceration above his right eye. (Aumais Decl., ¶ 3, Exh. 1, Heredia Depo., 49-51.)

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Plaintiff testified that, on impact, his body went “forward and ... back,” something “struck [him] in the head,” his sunglasses “flew off,” he lost consciousness, and he regained awareness “on the floor” of the van. (Aumais Decl., ¶ 3, Exh. 1, Heredia Depo., 51-53.)

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While the van was stopped, Defendant Doolittle’s vehicle struck the rear and right rear quarter of the van. (Aumais Supp. Decl., ¶ 6, Exh. 6.)

- The

dashcam video footage is reasonably susceptible to interpretation that, on impact, an unsecured seat belt at the C-pillar (forward of Plaintiff, serving a seat position other than his own) swung freely through the cabin. (McEwan Decl., ¶ 3, Exh. A.)

Plaintiff further argues

that it is immaterial that he had no prior issues with the seat belts in Access Transit's vehicles. Plaintiff additionally asserts that UMF No. 11 ["Hernandez was not at fault for the subject accident."] and UMF No. 25 ["Plaintiff was not injured as a result of any design or manufacturing defect [...]."] are improper legal conclusions and not facts.

Alternatively, Plaintiff requests

that the Court continue the Motion pursuant to Code of Civil Procedure section 437c, subdivision (h), to allow Plaintiff to take the depositions of Defendant Hernandez and Defendants' Person Most Qualified. Plaintiff's counsel served notices of deposition prior to filing the opposition, but Defendants have not yet provided dates for the deposition. (Aumais Decl., ¶ 10.) Plaintiff argues that the depositions will reveal pertinent information including the adequacy of Plaintiff's securement, the fitness of the subject van, and other issues raised in the Motion. (Aumais Decl., ¶ 11.)

In reply, Defendants note

that the pleadings frame the issue on summary judgment and that Plaintiff did not raise a "common carrier" theory of liability in the FAC. Further, Plaintiff offers no evidence that Defendants are common carriers under Civil Code section 2168 such that a heightened standard of care applies.

Further, Defendants argue

that a party cannot introduce their own discovery responses as evidence. To the extent Plaintiff relies on his own testimony that he was thrown from his seat, lost consciousness, and ended up on the floor, such assertions are contradicted by the video footage. In the video, Plaintiff remained in his seat after the impact and removed the seatbelt himself. Additionally, Plaintiff speculates that an unsecured seatbelt hit him in the head, but the video footage shows that Plaintiff's head struck the top interior of the van as a result of the collision.

Defendants further argue

that the Court should not grant Plaintiff's request for a continuance, because

Plaintiff has not shown diligence in noticing the subject depositions. The Motion was filed on February 13, 2026. Plaintiff served the notices of deposition only 12 days before the opposition was due—such notices do not provide for the minimum notice period required under Code of Civil Procedure sections 2025.270, subdivision (a) and 1010.6. (McEwan Decl., ¶¶ 3-4, Exhs. A-B.) Defendants timely objected to the deposition notices.

Firstly, the Court finds that, as to “common carrier” duty of care argument, such issue was not raised in the pleadings, and is thus, is not the proper subject of this Motion. (See *Huntsman-West Foundation v. Smith* (2024) 104 Cal.App.5th 1117, 1133 [“[A] defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.”]; see also *Lemke v. Sutter Roseville Medical Center* (2017) 8 Cal.App.5th 1292, 1299, fn. 2 [“A party cannot successfully resist summary judgment on a theory not pleaded.”].) The Court agrees that Plaintiff offers no authority supporting the contention that Defendants affirmatively placed the common carrier question at issue when they raised it in their Answer. Regardless, Plaintiff has not presented evidence that Defendants are “common carriers” pursuant to Civil Code 2168.

The Court further notes that Plaintiff’s own responses to Defendants’ Form Interrogatories cannot serve as evidence to create a triable issue of fact. (See *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450 [“[A] responding party may not use its own interrogatory responses in its own favor.”], citing Code Civ. Proc., § 2030.410.) The Court primarily relies on the video footage, Plaintiff’s deposition testimony to the extent it is consistent with the video footage, and Defendant Hernandez’s declaration in making its decision.

The Court finds that it is generally undisputed that Defendant Hernandez buckled Plaintiff’s seat belt. Hernandez declared that he assisted Plaintiff into the van and helped him to put on his seatbelt. (Hernandez Decl., ¶ 3.) Plaintiff testified that both the lap and should belts were on at the time of impact, but that he does not remember whether he or Defendant Hernandez put on the buckle. (Aumais Decl., ¶ 3, Exh. 1, Heredia Depo., 42.) Although the video footage is unclear as to the initial positioning of the seat belt, it clearly shows Plaintiff unbuckling his seat belt immediately following the accident. (McEwan Decl., ¶ 3, Exh. A.)

However, the Court finds that Defendants have failed to meet their burden of proof, and a triable issue of fact exists, as to whether Defendant Hernandez put on the seat belt properly such that his duty of care to Plaintiff was breached. A triable issue of facts also exists as to whether the van's other seat belts and fixtures were properly secured. The Court observes from the video footage that, as a result of the accident, Plaintiff jolted forward and then backward into a reclined position, where the seat had reclined. (McEwan Decl., ¶ 3, Exh. A.) Plaintiff remains in this reclined position after the accident. (Ibid.) Further, it is undisputed that Plaintiff suffered a laceration above his left eye as a result of the jolting. (Aumais Decl., ¶ 3, Exh. 1, Heredia Depo., 49-51.) Despite both parties' arguments, the Court finds that it is unclear from the video footage 1) whether Plaintiff's seat belt is on correctly, and 2) what caused Plaintiff's laceration. Interpreting the evidence in light most favorable to Plaintiff, the Court finds that a reasonable jury could determine from the evidence that Defendant Hernandez did not properly secure Plaintiff or ensure that the vehicle was in appropriate condition.

Accordingly, Defendants'

Motion for Summary Adjudication is DENIED as to the first cause of action.

Third Cause of Action – Negligent Entrustment

To hold a defendant liable

for negligent entrustment, the plaintiff must prove that (1) the driver was negligent in operating the vehicle; (2) that the defendant was an owner of the vehicle operated by the driver; (3) that the defendant knew, or should have known, that the driver was incompetent or unfit to drive the vehicle; (4) that the defendant permitted the driver to use the vehicle; and (5) that the driver's incompetence or unfitness to drive was a substantial factor in causing harm to the plaintiff. (See *Jeld-Wen, Inc. v. Superior Court* (2005) 131 Cal.App.4th 853, 863-64.)

Defendants argue that the

undisputed facts demonstrate that Defendant Hernandez was not negligent, incompetent, or unfit to operate the vehicle on the date of the incident.

Further, as previously argued by Defendants, there is no evidence that any negligent entrustment was a substantial factor in causing harm to Plaintiff.

Defendants cite to the same evidence in support of the negligence cause of action.

In opposition, Plaintiff

argues that the negligent entrustment claim is based on two theories: 1) Defendants entrusted operation to a driver they knew or should have known was not competent to properly load, secure, and report on transport of disabled passengers (FAC, ¶ 55), and 2) Defendants entrusted a van they knew or should have known "contained defective passenger seating and safety systems that posed a significant risk to its occupants" (FAC, ¶ 56). Defendants' evidence does not negate either theory. Further, as to the vehicle unfitness argument, the video footage shows that "Plaintiff's seat folded rearward on impact and failed to provide occupant support." (Opp., 12:18.) Additionally, pre-incident maintenance history for the van shows that it experienced a passenger sliding-door malfunction requiring a tow on November 6, 2021, and a sliding-door re-adjustment on November 8, 2021. (Aumais Supp. Decl., ¶ 6, Exh. 6.) Such evidence suggests that a triable issue of fact exists as to whether Defendants knew or should have known the van was not fit to safely transport a disabled passenger.

In reply, Defendants

reiterate their arguments. Defendants assert that Plaintiff provides no evidence of negligent entrustment. Further, Plaintiff fails to demonstrate how an issue with the sliding door would be a substantial factor in causing Plaintiff's injuries.

The Court finds that

Defendants' Motion primarily rests on the argument that Defendant Hernandez did not negligently operate the vehicle (as discussed in the first cause of action), and thus, the first element of negligent entrustment cannot be met. Defendants do not discuss the other elements of negligent entrustment either by offering evidence or pointing to Plaintiff's lack of evidence. As discussed, the Court finds that a triable issue of fact exists as to whether Defendant Hernandez was negligent, and thus, the negligent entrustment action does not necessarily fail.

Accordingly, Defendants'

Motion for Summary Adjudication is DENIED as to the second cause of action.

Fourth and Fifth Causes of Action – Strict Product

Liability Causes of

Action

A strict products liability

cause of action can be based on manufacturing defects, design defects, or inadequate warnings or failures to warn. (See *Anderson v. Owens-Corning Fiberglas Corp.* (1991) 53 Cal.3d 987, 995.) In order to be liable for strict products liability, a plaintiff must allege that the defendant "produced, manufactured, sold, or was in some way responsible for the product." (*Garcia v. Joseph Vince Co.* (1978) 84 Cal.App.3d 868, 874.)

Defendants argue that

Plaintiff's strict product liability causes of action fail because Defendant Access Services is not in the business of manufacturing, selling, or distributing motor vehicles or seat belt restraint systems, and did not engage in such activities as to the subject van. (Rodriguez Decl., ¶¶ 8-12; McEwan Decl., ¶ 4, Exh. B.) Access Services purchased the subject van in 2016, and thus, did not place the van on the market. (Rodriguez Decl., ¶ 7.)

Plaintiff does not oppose

the summary adjudication of the strict product liability causes of action.

Accordingly, Defendants'

Motion for Summary Adjudication of the fourth and fifth causes of action are GRANTED.